

Your rights and benefits

Having a baby is a huge life change, and many new parents find time and money are in short supply. Maternity and parental leave and pay can help ease the transition, so it's worth finding out what you're entitled to.

Your rights

When you have a baby, you can take up to 12 weeks off work during a 12-month period and retain your right to return to the same, or an equivalent, position, including equivalent pay and benefits, if you are eligible to be covered by the Family and Medical Leave Act (FMLA). Employees eligible for FMLA have worked for their employers for at least 12 months, including at least 1,250 hours during the previous 12 months. Additionally, the employee must work within 75 miles of where 50 or more employees work. FMLA leave is guaranteed unpaid, but employers or employees can opt to use paid vacation or sick time, when this is allowed by an employer. Both men and women are eligible for FMLA leave, which applies to private employees, all state and local government employees, and some federal employees.

Your employer is required to continue your health insurance coverage during your FMLA leave. If you've been paying a portion of your health insurance premiums, you'll have to continue doing so during your FMLA leave. If you don't want to take all 12 weeks of FMLA leave in a row, you may be able to break it down into shorter blocks of time, or even a shorter work week or work day. When possible, employees who are planning to use FMLA leave are required to tell their employers 30 days before the leave would begin. But if you have pregnancy complications that require you to stop working before the baby is born, the 12 weeks of FMLA leave would begin then.

Maternity pay

According to 2015 data from the US Department of Labor's Bureau of Labor Statistics, just 12 percent of all workers were eligible for paid family leave. According to the Institute for Women's Policy Research, which analyzed 2006 rankings for America's 100 most family-friendly employers, 93 percent of those best-ranked companies provide at least one week of paid maternity leave, but 52 percent of the companies pay for six weeks or less. Every company has its own policies for maternity leave. If an employer does provide compensation, the amount you'll receive may depend on what you earn and how long you've been working for the company. The best way to find out what you may be eligible for is to meet with a human resources representative or read the employee handbook. You may be allowed to use paid sick time, vacation days, or the company's short-term disability coverage, in addition to paid leave.